

24STCV23869 24STCV23869

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Case Number: 24STCV23869 Hearing Date: August 17, 2026 Dept: 406

PETER BECK,

Plaintiff,

v.

SOUTHERN REAL ESTATE HOLDING LLC, et
al.,

Defendants.

Case No.: 24STCV23869

Hearing Date: August 17, 2026

[TENTATIVE]

order RE:

plaintiff's motion for summary
adjudication

BACKGROUND

On September 16, 2024, Plaintiff

Peter Beck filed this action against Defendants Southern California Real Estate Holding LLC (SCREH) (erroneously sued as Southern Real Estate Holding LLC), Adam Christopher, and Christopher Berger. Plaintiff subsequently identified Adam Berger as Doe 1 and American Plus Bank, N.A. as Doe 2.

Plaintiff filed the operative Second

Amended Complaint on December 23, 2025. The SAC asserts (1) quiet title to prescriptive easement, (2) enforcement of driveway easement, (3) injunction against private nuisance, and (4) declaratory relief. Plaintiff and Defendants own adjacent properties, and the dispute concerns usage of Defendants' parking lot to access a driveway for egress.

On May 22, 2026, Plaintiff filed the instant motion for summary adjudication of the first cause of action for quiet title to prescriptive easement. Defendants filed an opposition on July 28, 2026. Plaintiff filed a reply on August 6, 2026.

LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1101.) To establish a triable issue of material fact, the party opposing the motion must produce "substantial responsive evidence." (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

DISCUSSION

I.

The Subject Properties

Plaintiff and Defendants own adjacent properties on Inglewood Street in Hawthorne. (Beck Decl., Ex. 1-2.) The parking lots in front of each property are also adjacent and physically connected. (Ibid.) The driveway leading to Plaintiff's parking lot is referred to as the North Driveway, while the driveway leading to Defendants' parking lot is the South Driveway. (Ibid.) The tenants of Plaintiff's property are a liquor store and beauty salon, while an auto repair shop occupies Defendants' property. (Ibid.)

Plaintiff's property was previously owned by Hae Sup Um from 2011 to 2022 until Plaintiff purchased it in February 2022. (Plntf.'s Stmt. of Undisputed Facts (UF) 3-4.) Defendants' property was previously owned by William Jacobson for 20 years before Defendants purchased it in 2021. (UF 9-11.)

Plaintiff seeks a prescriptive easement over Defendants' parking lot to allow vehicles to access the South Driveway for egress. (SAC ¶ 15.) The alternative is for vehicles parked in front of Plaintiff's property to back out of the North Driveway into oncoming traffic, which Plaintiff alleges is less safe. (Ibid.) Plaintiff alleges that during Um's and Plaintiff's ownership of the property, patrons regularly drove through Defendants' parking lot to egress through the South Driveway. (Id., ¶ 16.) This continued until June 2023, when Defendants installed concrete blocks and then a fence between the two parking lots. (Ibid.; UF 21.)

II.

Prescriptive Easement

"To establish the elements of a prescriptive easement, the claimant must prove use of the property, for the statutory period of five years, which use has been (1) open and notorious; (2) continuous and uninterrupted; (3) hostile to the true owner; and (4) under claim of right." (Hansen v. Sandridge Partners, L.P. (2018) 22 Cal.App.5th 1020, 1032.) "A transfer of real property passes all easements attached thereto." (Civ. Code, § 1104.) "Periods of prescriptive use by

successive owners of the dominant estate can be 'tacked' together if the [remaining] elements are satisfied." (Windsor Pacific LLC v. Samwood Co., Inc. (2013) 213 Cal.App.4th 263, 270.)

a. Open and Notorious

A use is open and notorious when it is "sufficient to impart actual or constructive notice of the use to the owner of the servient tenement." (Connolly v. McDermott (1984) 162 Cal.App.3d 973, 977.)

Here, it is undisputed that Defendants' predecessor, Jacobson, and Defendants were aware that their parking lot was being used by patrons of the adjoining property as a passthrough to reach the South Driveway. Both Jacobson and Berger testified that this was happening. (Plntf.'s Ex. E at 19:2-17; Ex. F at 65:1-4.) There is no indication that such use was surreptitious at any point. In fact, Defendants installed concrete blocks, and then a fence, precisely to stop the patrons of Plaintiff's property from driving onto their parking lot. (Plntf.'s Ex. F at 65:1-21.) Defendants' and their predecessor's actual knowledge of the use shows that it was open and notorious. Defendants do not dispute that the usage of their parking lot for egress was open and notorious.

b. Continuous and Uninterrupted

This element does not require literal continuous use at all times. "The actual use required depends on the nature of the easement. It need not be used every day during the prescriptive period. The use is sufficient if it occurs on those occasions when it is necessary for the convenience of the user." (Fogerty v. State of California (1986) 187 Cal.App.3d 224, 1239.) Whether the elements of prescriptive easement are satisfied is ordinarily "a question of fact." (Windsor, supra, 213 Cal.App.4th at p. 270.)

Here, Plaintiff alleges that for over five years, Defendants' parking lot was openly used for egress by liquor store customers "usually between 5:00 p.m. to midnight on Mondays to Fridays (and from 11 a.m. to 1 a.m. on Saturdays and Sundays)." (SAC ¶ 16.) Salon customers allegedly used the parking lot "usually between 5:00 p.m and 7:00

p.m. on Tuesdays to Fridays (and from 9:00 a.m. to 7 p.m. on Saturdays)." (Ibid.)

Um avers that during his ownership of the northern property, liquor store patrons used Defendants' parking lot for egress from 4:30pm to 10pm on Sundays through Thursdays, and 11am to 11pm on Fridays and Saturdays. (Um Decl. ¶ 4.) Jacobson testified that during his 20 years of ownership, liquor store customers used his parking lot to exit through the South Driveway, without specifying days or times. (Plntf.'s Ex. E at 22:10-17.) Plaintiff seeks a prescriptive easement "outside of Defendant's business hours, which are between Monday and Friday, 8:00 a.m. to 5:30 [p].m." (Mtn. 6:7-9; UF 14.) Plaintiff also seeks an easement on Saturdays and Sundays, when the auto shop is closed. (Mtn. 6:7-9.)

However, the scope of the requested easement is open-ended and inconsistent with the evidence. Plaintiff seeks an easement for any time outside of Defendants' business hours, including all day Saturday and Sunday, without evidence of actual uninterrupted use during those times during the prescriptive period. Moreover, both Jacobson and Berger testified that access to their parking lot was restricted whenever vehicles were parked there. (Def.'s Ex. 1 at 25:8-11; Ex. 2 at 69:16-19.) A reasonable trier of fact may find that usage was not continuous and uninterrupted if the parking lot was regularly inaccessible whenever vehicles were parked there. A pathway is arguably not usable "when it is necessary for the convenience of the user" if it is regularly inaccessible. (See *Fogerty*, supra, 187 Cal.App.3d at p. 1239.) Further factual resolution is required to determine whether an easement truly exists for specific days or times. The evidence currently before the Court is insufficient to warrant summary adjudication.

c. Hostile

"The term 'adverse' in this context is essentially synonymous with 'hostile' and 'under claim of right.'" (*Windsor*, supra, 213 Cal.App.4th at p. 270.) "It simply means that the property was used without permission of the owner of the land." (*Felgenhauer v. Soni* (2004) 121 Cal.App.4th 445, 450.) Permission may be "explicit or implicit." (*Husain v. California Pacific Bank* (2021) 61 Cal.App.5th 717, 726.) "Whether the use is hostile or is merely a matter of neighborly accommodation, however, is a question of fact to be determined in light of the surrounding circumstances and the relationship between the parties." (Ibid.)

Here, it is undisputed that Jacobson and Um never discussed usage of the driveways with each other. (Plntf.'s Ex. E at 15:11-19, 19:2-13; Um Decl. ¶ 5.) Jacobson also never discussed it with Berger prior to selling him the property. (Id. at 24:12-17.) Berger testified that he did not consent to the use of his parking lot for egress and that he would have denied any request for such use. (Ex. F at 81:2-6.) Plaintiff argues that this demonstrates a lack of consent.

However, the record also supports a contrary inference. Jacobson testified that he regularly used the Northern Driveway for ingress. (Plntf.'s Ex. E at 12:10-22.) Berger also confirmed that he used the Northern Driveway. (Plntf.'s Ex. F at 52:20-24.) The fact that the owners of Defendants' property used the Northern Driveway for ingress suggests a potential reciprocal arrangement regarding ingress and egress, supporting implied consent.^[1] Jacobson also testified that he "didn't care" if liquor store patrons used his parking lot, which could be interpreted to mean implied consent. (Plntf.'s Ex. F at 19:15-17.) Plaintiff has not precluded this possibility, and the Court cannot reach a conclusion as to the "surrounding circumstances and the relationship between the parties" on the present record. (See *Husain*, supra, 61 Cal.App.5th at p. 726.)

Plaintiff argues that "continuous use of an easement over a long period of time without the landowner's interference is presumptive evidence of its existence and in the absence of evidence of mere permissive use it will be sufficient to sustain a judgment." (*Warsaw v. Chicago Metallic Ceilings, Inc.* (1984) 35 Cal.3d 564, 571-72.) But here, as discussed above, there are triable issues over whether there was "continuous use." Moreover, there is potential "evidence of mere permissive use," as discussed above. *Warsaw* was decided at trial, not on summary adjudication. (Id. at p. 570.) Ultimately, the specific circumstances and relationship between the parties are questions of fact.

In sum, Plaintiff has not proven the existence of a prescriptive easement as a matter of law. Accordingly, summary adjudication of the first cause of action is inappropriate.

CONCLUSION

Plaintiff's motion for summary
adjudication is DENIED.

[1] Defendants also claim that there
was a mutual arrangement between the owners of the two properties to allow
parking or "staging" on each other's lots. However, the purported testimony is
not included in Defendant's evidence. (See Resp. to UF 16.) Therefore, the
Court does not consider this fact.